

would not have ordered a response to the Subpoena as presently framed. Nonetheless, the matter is moot, as noted above.

As relates to sanctions however, in light of the foregoing, the Court concludes that sanctions are not appropriate or justified. See Code Civ. Proc. § 2025.480(j) (“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”).

Disposition

The Court finds and orders as follows:

1. The Motion to Compel is **DENIED** as moot.
2. Sanctions are **DENIED**.
3. The Court shall issue the order after hearing.

21. 9:01 AM CASE NUMBER: C25-01233
CASE NAME: SAYED MASSOUD VS. TOYOTA MOTOR SALES, U.S.A., INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS BY DEFENDANT TOYOTA MOTOR SALES, U.S.A., INC.**
FILED BY: MASSOUD, SAYED
TENTATIVE RULING:

Matter **WITHDRAWN** by moving party’s Notice of Withdrawal filed May 5, 2026. The hearing is **VACATED**. The other pending discovery motions were withdrawn as well.

Courtroom Clerk’s Session

22. 1:30 PM CASE NUMBER: N25-0829
CASE NAME: DUONG ESTUARY COVE, LLC VS. CONTRA COSTA COUNTY
HEARING IN RE: PETITION FOR WRIT OF MANDATE
FILED BY:
TENTATIVE RULING:

CONTINUED by the Court to June 29, 2026, at 1:30 p.m.